

IN THE
**United States Court of Appeals
for the First Circuit**

In Re: Application of Concerned Citizens of Cairo,

Appellant-Petitioner,

v.

Raiders and Associates, LLC,

Appellee-Intervenor.

On Appeal from a Judgment
of the United States District Court for the District of Massachusetts

BRIEF FOR APPELLANT

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April 13, 2026, 8:30 PM
WCC 3013

Oral Argument

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PRELIMINARY STATEMENT

Concerned Citizens of Cairo (“CCC”), a non-governmental organization, petitioned for a court order in the United States District Court for the District of Massachusetts to obtain limited discovery under 28 U.S.C. § 1782 from Raiders and Associates, LLC (“Raiders America”) for use in ongoing litigation in the United Kingdom's Central London County Court. CCC's § 1782 petition sought communications between Raiders America and the British Museum concerning the acquisition of artifacts from Egypt. Raiders America's parent company, Raiders and Associates, Ltda. ('Raiders Worldwide'), stores those communications in Brazil. The district court denied CCC's petition for discovery after Raiders America intervened in opposition. Although the district court held that § 1782's “resides or is found” requirement incorporates personal-jurisdiction principles and that the court possessed specific jurisdiction over Raiders America, it concluded that § 1782 does not apply extraterritorially and therefore cannot be used to compel production of documents maintained in Brazil by Raiders America's parent company. CCC timely appeals.

QUESTIONS PRESENTED

1. Courts have consistently interpreted the phrase “resides or is found” in § 1782 and other statutes as encompassing specific jurisdiction. The C.E.O. of Raiders America uses a Cambridge office to oversee operations, including the planning of treasure-hunting expeditions. Does § 1782's “resides or is found” language authorize personal jurisdiction over Raiders America, a company that has maintained a Massachusetts office for almost three decades?
2. Section 1782 incorporates the Federal Rules of Civil Procedure, which authorize discovery of documents located abroad regardless of where they are stored. Raiders America generated the documents CCC seeks through American employees in its Cambridge,

Massachusetts office and then shipped those documents to Brazil. Does Raiders America's storage decision place those documents beyond the statute's reach?

STATEMENT OF THE FACTS

Treasure hunter Dr. Kentucky Jones founded the Brazilian company Raiders Worldwide to coordinate his expeditions abroad. Raiders Worldwide owns Raiders America, a New Mexico LLC headquartered in California that maintains an office in Cambridge, Massachusetts, for Marcus Brady, the C.E.O. of both companies. J.A. 22. From there, Brady organized Jones's treasure-hunting expeditions, including operations to recover foreign artifacts, while Raiders America's New Mexico office staff served as “principal mission leaders” coordinating Jones's activities in the field. *Id.* CCC contends that Dr. Jones traveled to Egypt and stole cultural artifacts from the sacred Spielberg Ruin, later selling them to the British Museum. J.A. 13.

Egyptian authorities investigating the theft located two tourists who reported observing two men at the sealed entrance to the ruin. J.A. 15–18. One was addressed over the radio as 'Dr. Jones'; the other radioed a 'New Mexico base.' *Id.* The men later emerged carrying a 'large, heavy-looking sack.' *Id.* Investigators initially deemed the tourists' account unreliable due to heatstroke symptoms, but their testimony now appears credible. *Id.*

In 2020, the British Museum unveiled an exhibit of ancient Egyptian artifacts, including a dual-portrait bust of Pharaoh Akhenaten and Queen Nefertiti. J.A. 4. CCC was convinced the artwork was stolen and filed a suit in the Central London County Court in March 2021, seeking the return of the artifacts. J.A. 13. While the museum claimed the artifacts were previously held in a private collection for 200 years, before they were “anonymously donated”, documents CCC obtained through discovery suggest that Dr. Jones had acquired the artifacts and transferred them to the museum as part of an agreement with his company. J.A. 4, 13.

Parties jointly agree that although Raiders America was an appropriate party to seek discovery from, the Central London County Court lacked the authority to compel Raiders to produce documents. J.A. 23. Instead, CCC petitioned the District Court of Massachusetts under 28 U.S.C. § 1782 for an order compelling Raiders America to produce any communications between themselves and the British Museum concerning Dr. Jones's acquisition of ancient artifacts from Egypt. J.A. 19. Raiders America intervened to oppose. J.A. 20.

The district court denied CCC's application. J.A. 12. On the threshold jurisdictional question, the court ruled in CCC's favor, concluding that specific jurisdiction satisfies § 1782's requirement that the discovery target "resides or is found" in the district. J.A. 9.

However, the court held that § 1782 did not apply extraterritorially, reasoning that the statute contained no clear expression of congressional intent to reach documents located abroad. J.A. 9–11. Although the documents were created in Massachusetts, by American employees, for an American company, because Raiders America elected to store their hard copies in Brazil, the court reasoned that ordering their production would be an extraterritorial application of § 1782 and denied CCC's application. J.A. 12. CCC timely appealed. J.A. 24.

SUMMARY OF ARGUMENT

Congress enacted 28 U.S.C § 1782 to make American courts available to assist foreign tribunals and to encourage reciprocity. A narrow interpretation of the statute would frustrate this purpose. Limiting the reach of § 1782 to only those entities subject to general jurisdiction in a district court, or preventing discovery of extraterritorial documents, would unnecessarily constrain the discovery process and render § 1782 largely ineffective against modern multinational entities.

I. Section 1782's "resides or is found" requirement incorporates ordinary personal-

jurisdiction principles and thus reaches any entity over which a district court may exercise either general or specific jurisdiction. The statutory text, structure, and history all confirm this.

“Resides” captures the “at home” forums for a corporation, while “is found” reaches at least those forums where the corporation is subject to specific jurisdiction. Reading “found” to be coextensive with “resides” would violate the canon against surplusage and contradict Congress's choice to draft § 1782 broadly to provide efficient assistance to foreign tribunals. A narrower, general-jurisdiction-only reading undermines the statute's text and purpose.

Under settled specific jurisdiction standards, Raiders America is “found” in Massachusetts. Raiders America purposefully availed itself of the forum by renting and maintaining a Cambridge office for its C.E.O. and using that office to plan the treasure-hunting expeditions underlying CCC's U.K. suit. CCC's § 1782 application thus “arises out of or relates to” Raiders America's Massachusetts contacts, and exercising jurisdiction is fair and reasonable. The remaining question is whether § 1782 authorizes the discovery of documents that Raiders America generated in Cambridge but chose to store in Brazil.

II. The presumption against extraterritoriality, the principle that absent congressional indication, federal statutes are presumed to only apply domestically, does not bar discovery under § 1782 of documents located abroad. First, the presumption does not apply to § 1782 at all because it is a purely jurisdictional discovery mechanism that neither regulates conduct nor creates a cause of action. Even if the presumption applies, Congress rebutted it at step one of the framework established in *Nabisco*, which asks whether Congress provided a “clear, affirmative indication” of extraterritorial application. *RJR Nabisco, Inc. v. European Cmty.*, 579 U.S. 325, 337 (2016). Congress's 1964 incorporation of the extraterritorial Federal Rules of Civil Procedure (Fed. R. Civ. P), its legislative history, and a consistent pattern of statutory expansion

all provide that indication.

If the presumption is not rebutted at the first step, the *Nabisco* framework asks at the second step whether the case involves a permissible domestic application by examining the statute's "focus." *Id.* Section 1782 focuses on the district court's authority over persons found within its jurisdiction, not the location of documents, and every element of that focus is domestic in this case. The district court's contrary interpretation defeats the statute's purpose and produces absurd results: it forces CCC to petition the courts of Brazil, a country with no connection to the dispute, to obtain documents from a different entity than the discovery target all parties agree is appropriate. This Court should reverse and hold that § 1782 does not permit a company to protect American-generated documents from discovery by storing them across the border.

STANDARD OF REVIEW

Both questions turn on issues of statutory interpretation. Statutory interpretation is a matter of law and should be reviewed *de novo*. *In re Schlich*, 893 F.3d 40, 46 (1st Cir. 2018).

ARGUMENT

28 U.S.C. § 1782 provides that a district court “of the district in which a person resides or is found may order him to... produce a document or other thing for use in a proceeding in a foreign or international tribunal”. 28 U.S.C. § 1782. The statute manifests Congress's intent to provide “federal-court assistance in gathering evidence for use in foreign tribunals”. *Intel Corp. v. Advanced Micro Devices, Inc.*, 542 U.S. 241, 247 (2004). A rule that forbids U.S. courts with specific jurisdiction from ordering discovery would needlessly frustrate that purpose, rendering § 1782 largely useless against modern multinational entities. So too would a reading that allows companies to shield American-generated documents from discovery simply by shipping them across the border.

I. Raiders America Is “Found” in Massachusetts Within the Meaning of § 1782.

The breadth of § 1782's “resides or is found” language “extends to the limits of personal jurisdiction consistent with due process” and thus allows a district court to order discovery from a party over whom it possesses only specific jurisdiction. *In re del Valle Ruiz*, 939 F.3d 520, 528 (2d Cir. 2019). Raiders America's used its Cambridge office to coordinate operations underlying the events at issue, establishing sufficient minimum contacts with Massachusetts required to enable a fair and reasonable exercise of the district court's jurisdiction. The district court thus correctly ruled that Raiders America is “found” in Massachusetts within the meaning of § 1782.

A. “Resides or is found” in § 1782 tracks the bounds of personal jurisdiction consistent with due process.

Text, structure, and history all confirm that § 1782's “resides or is found” language extends beyond general jurisdiction to encompass entities subject to specific jurisdiction. Contemporaneous dictionary definitions, the canon against surplusage, and analogous statutory uses of “found” show that a corporation is “found” wherever it conducts business in a manner sufficient to support personal jurisdiction, not only where it is “at home.” Interpreting “found” to require general jurisdiction would contradict the statute's broad purpose, as reflected in its legislative history. The Court should therefore affirm the district court's holding that Raiders America “is found” in Massachusetts within the meaning of § 1782.

1. The definition of “found” and the canon against surplusage indicate that “resides or is found” reaches beyond general jurisdiction.

Courts should interpret statutory terms to be consistent with their “ordinary meaning... at the time Congress enacted the statute”. *Perrin v. United States*, 444 U.S. 37, 42 (1979). Dictionary definitions contemporaneous with § 1782's amendment in 1949—where “residing” was changed to “resides or is found”—described corporations as being “found” where they are “doing business in such state through an officer or agent... in such manner as to render it liable

then to suit and to constructive or substituted service of process”, manifesting an “actual presence” there. *Found*, Black's Law Dictionary (4th ed. 1951). A corporation would therefore be “found” not just where it “resides” but also anywhere it conducts business or maintains an office. *See In re General Electric Co.*, 2022 WL 16720425, 3 (D. Mass. 2022) (holding that because a company “maintains an office in Boston, it is 'found' in [Massachusetts] within the meaning of § 1782”). This broader definition tracks the boundaries of specific jurisdiction, which applies to parties who have availed themselves of the privileges of conducting activities in a state. *Int'l Shoe Co. v. Washington*, 326 U.S. 310, 319 (1945).

Reading “found” as capturing specific jurisdiction gives independent meaning to all words in the statute. Courts generally are “reluctant to treat statutory terms as surplusage”. *Duncan v. Walker*, 533 U.S. 167, 174 (2001). “Resides” naturally captures the general jurisdiction “at home” forums for a corporation (*i.e.*, its place of incorporation and principal place of business). *See Daimler AG v. Bauman*, 571 U.S. 117, 137 (2014). The inclusion of “is found” must then indicate something distinct: a grant of broader jurisdictional scope. Even the strictest interpretations of § 1782's “is found” language are broader than the “at home” test of general jurisdiction. *See In re Eli Lilly and Company*, 37 F.4th 160, 165 (4th Cir. 2022) (holding that “a corporation is found where it is physically present by its officers and agents carrying on the corporation's business”). Thus, reading “resides” or “is found” as coextensive, covering only places where a corporation is “at home”, would violate the rule against surplusage.

2. Interpretation of “resides or is found” in other statutes commonly encompasses the bounds of due process.

Similar language to “resides or is found” from other statutes has been found to encompass both general and specific jurisdiction. *See e.g., Waeltz v. Delta Pilots Ret. Plan*, 301 F.3d 804, 810 (7th Cir. 2002) (holding that a fund can be “found” under 29 U.S.C. § 1132(e)

where it has “minimum contacts” supporting personal jurisdiction in analysis of); *Braun v. Berenson*, 432 F.2d 538, 544 (5th Cir. 1970) (holding that a corporation is “found” within a district if it continuously carries on any substantial part of its activities there” with respect to the federal antitrust venue provision 15 U.S.C. §15); *Varsic v. U.S. Dist. Ct.*, 607 F.2d 245, 248-249 (9th Cir.1979) (holding that a fund can be “found” under 29 U.S.C. § 1132(e) in the district where an employee worked). “Found” is therefore commonly understood in statutory interpretation to capture entities who are subject to personal jurisdiction within the bounds of due process.

3. The legislative history and purpose of § 1782 indicates that “found” encompasses specific jurisdiction.

Congress used broad jurisdictional language to fulfill its “twin goals” of providing efficient assistance to foreign tribunals and encouraging reciprocity. *See Brandi-Dohrn v. IKB Deutsche Industriebank AG*, 673 F.3d 76, 80 (2d Cir. 2012). Indeed, when the statute was amended the year after its enactment to add “is found”, the House Judiciary Committee wrote that “[t]his amendment *corrects restrictive language*” in § 1782 to enable depositions “without regard to whether the deponent is 'residing' in the district or only sojourning there”. H.R. Rep. No. 81-352, at 16 (1949) (emphasis added). All subsequent amendments further liberalized the statute, expressing Congress's intent that § 1782 was meant to be interpreted expansively, so that district courts have wide discretion to assist foreign courts. *See In re Edelman*, 295 F.3d 171, 179-180 (2d Cir. 2002) (stating that “Congress has expressed as its aim that the statute be interpreted broadly” and the use of tag jurisdiction under this statute is consistent with due process). Framing the amendment as a correction of “restrictive” jurisdictional scope conveys Congress's clear intent for § 1782 to be applicable to parties beyond merely those who “reside” in the district. *See id.* Far from being constrained to general or even “tag” jurisdiction, “§ 1782's

‘resides or is found’ language extends to the limits of personal jurisdiction consistent with due process”. *In re del Valle Ruiz*, 939 F.3d at 528.

Further, limiting a district court's power under § 1782 to general jurisdiction would make the statute unusable in any district where an entity does substantial business but is not incorporated or headquartered. This is counterintuitive for a statute whose purpose is to enable foreign litigants to reach relevant evidence. It would fundamentally undermine § 1782's power against most global modern corporations—precisely the entities from which foreign courts most need discovery.

B. The district court has specific jurisdiction over Raiders America because its C.E.O. planned Jones' adventuring activities from its Cambridge office.

Raiders America's activities in its Cambridge office “satisfy each prong of the specific-jurisdiction test: (1) relatedness, (2) purposeful availment, and (3) reasonableness”. *Stokinger v. Armlist*, 166 F.4th 229, 233-234 (1st Cir. 2016). Specific jurisdiction exists where a party has “certain minimum contacts with [the state] such that the maintenance of the suit does not offend 'traditional notions of fair play and substantial justice'”. *Id.* at 234 (quoting *Int'l Shoe Co.*, 326 U.S. at 316). The record clearly indicates that Raiders America fulfills the requirements of specific jurisdiction: (1) Jones' treasure-hunting trips to Egypt were planned in Cambridge, (2) Raiders maintained a Cambridge office where its C.E.O. directed the company for decades, and (3) document production would be a minimal burden.

1. CCC's § 1782 application relates to Raiders America's Massachusetts contacts.

Raiders America's conduct in Massachusetts is clearly related to CCC's discovery request. The relatedness prong requires that the suit “aris[es] out of or relate[s] to the defendant's contacts with the forum”. *J. McIntyre Machinery, Ltd. v. Nicastro*, 564 U.S. 873, 881 (2011). There need not be “a causal showing... *i.e.*, proof that the plaintiff's claim came about because of

the defendant's in-state conduct”, so long as the request “relates to” that conduct. *Ford Motor Co. v. Montana*, 592 U.S. 351, 362 (2021). Raiders America's C.E.O. attests that the company's Cambridge office “planned operations to recover foreign artifacts”. J.A. 22. These operations are allegedly the source of stolen Egyptian artifacts that Raiders later sold to the British Museum. J.A. 15. Initial discovery in CCC's U.K. proceedings against the British Museum uncovered “documents suggesting the museum actually received the artifacts from [Raiders America]”. *Id.* The district court thus correctly determined that Raiders America's use of its Cambridge office to prepare Jones's expeditions meant that the discovery request relates to the corporation's activities in Massachusetts.

2. Raiders America purposefully availed itself of the privilege of conducting activities in Massachusetts.

An entity has minimum contacts that can serve as the basis of specific jurisdiction if it has “purposefully avail[ed] itself of the privilege of conducting activities within the forum state”. *Hanson v. Denckla*, 357 U.S. 235, 253 (1958). “The cornerstones of the purposeful-availment requirement are voluntariness and foreseeability”, requiring respectively that “the defendant's contacts result proximately from [their own] actions” and that the defendant “should reasonably anticipate being haled into court there.” *Stokinger*, 166 F.4th at 234 (internal quotations omitted). A C.E.O. overseeing operations from a long-term rented office space clearly meets the standard of purposeful availment. *See, e.g., Cossart v. United Excel Corp*, 804 F.3d 13, 20-21 (1st Cir. 2015) (holding that sending e-mails and making phone calls from a sales office in Massachusetts demonstrated purposeful availment for an out-of-state corporation); *C.W. Downer & Co. v. Bioriginal Food & Sci. Corp.*, 771 F.3d 59, 66-69 (1st Cir. 2014) (holding that retaining the services of a Boston-based investment bank satisfied the purposeful availment requirement for an out-of-state company because of the long-term contractual relationship). Raiders America chose

to rent and maintain a strategically important office in Cambridge for more than 25 years. J.A.

22. Its C.E.O. oversees operations from that office. *Id.* Raiders America has thus clearly purposefully availed themselves of the privilege of conducting activities in Massachusetts.

3. Exercising jurisdiction over Raiders America is fair and reasonable.

An exercise of jurisdiction is fair and reasonable so long as it does not offend traditional notions of fair play and substantial justice, determined through a five-factor test weighing “(1) the defendant's burden of appearing in the forum, (2) the forum state's interest in adjudicating the dispute, (3) the plaintiff's interest in obtaining convenient and effective relief, (4) the judicial system's interest in obtaining the most effective resolution of the controversy, and (5) the common interests of all sovereigns in promoting substantive social policies.” *Ticketmaster-N.Y., Inc. v. Alioto*, 26 F.3d 201, 209 (1st Cir. 1994); *see also World-Wide Volkswagen Corp. v. Woodson*, 444 U.S. 286, 298 (1980). Here, the burden on the defendant is small: the C.E.O. of Raiders America has worked from Massachusetts for decades and can easily coordinate the production of documents requested under § 1782. *C.W. Downer & Co.*, 771 F.3d at 69. Further, the aim of § 1782 is to aid foreign tribunals in discovery to increase efficiency and encourage reciprocity, confirming Massachusetts' suitability and interest in serving as a forum. Accordingly, it is fair and reasonable for the district court to exercise jurisdiction over Raiders America.

II. Section 1782 Authorizes Discovery of Documents Raiders America Generated in Cambridge, Regardless of Where They are Now Stored.

Under the extraterritoriality framework this Court applied in *Abbas*, courts ask first whether the presumption against extraterritoriality has been rebutted and, if not, whether the case involves a permissible domestic application by examining the statute's “focus.” *RJR Nabisco*, 579 U.S. at 337; *United States v. Abbas*, No. 24-1831, slip op. at 22 (1st Cir. Jan. 29, 2026).

Section 1782 authorizes the discovery CCC seeks at every step of this analysis. The presumption does not apply to a purely jurisdictional discovery mechanism like § 1782, and even if it did, Congress rebutted it by incorporating the Fed. R. Civ. P, its legislative history, and its consistent pattern of expansion. Moreover, because § 1782 focuses on the district court's authority over persons found within its jurisdiction, not the location of documents, ordering Raiders America to produce documents it generated in Cambridge is a permissible domestic application regardless of where those documents are now stored.

A. The presumption against extraterritoriality does not bar § 1782 discovery of documents located abroad.

The presumption is “typically applied to discern whether an Act of Congress regulating conduct applies abroad,” *Kiobel v. Royal Dutch Petroleum Co.*, 569 U.S. 108, 116 (2013).

Section 1782 does not regulate conduct; it is “simply a discovery mechanism” that “does not subject a person to liability.” *In re Edelman*, 295 F.3d at 179. But even if it applies, Congress rebutted it through the Fed. R. Civ. P incorporation, legislative history, and a consistent pattern of expansion. *See Morrison v. Nat'l Austl. Bank Ltd.*, 561 U.S. 247, 265 (2010) (an express statement of extraterritoriality is not essential).

1. The presumption does not apply to § 1782 because it is a purely jurisdictional discovery mechanism that neither regulates conduct nor creates a cause of action.

The Supreme Court has never applied the presumption to a “strictly jurisdictional” statute, “not otherwise tethered to regulating conduct or providing a cause of action.” *In re del Valle Ruiz*, 939 F.3d at 532 (citing *Kiobel*, 569 U.S. at 116; Restatement (Fourth) of the Foreign Relations Law of the United States § 404 cmt. a & reporters' note 3 (Am. Law Inst. 2018)). This court has previously categorized § 1782 as “a mechanism for obtaining discovery.” *In re Schlich*, 893 F.3d at 46. Section 1782 creates no cause of action and imposes no liability. It merely

enables a district court to order discovery from those within its jurisdiction. The presumption has no role here.

Courts have consistently distinguished jurisdictional provisions from substantive provisions, applying the presumption only to the latter. In *Morrison*, the Court applied the presumption to § 10(b), a provision prohibiting fraudulent conduct, while simultaneously holding the district court “had jurisdiction to adjudicate the § 10(b) question.” 561 U.S. at 254. Similarly, in *Nabisco*, the Court applied the presumption to the Racketeer Influenced and Corrupt Organizations (RICO) Act's substantive provisions but maintained it held jurisdiction under § 1332. 579 U.S. at 337–46. Because the presumption exists to determine whether substantive legal obligations extend beyond U.S. borders, *see id.*, and § 1782 imposes none, the presumption should not apply.

2. Congress’s incorporation of the Fed. R. Civ. P., which was already construed to authorize extraterritorial discovery, is a clear indication of extraterritorial intent.

To rebut the presumption, a statute must contain “a clear, affirmative indication that it applies extraterritorially”. *RJR Nabisco*, 579 U.S. at 337. However, “an express statement of extraterritoriality is not essential” as “context can be consulted as well”. *Morrison*, 561 U.S. at 265; accord *RJR Nabisco*, 579 U.S. at 336. In *Nabisco*, the court held that RICO overcame the presumption because it incorporated predicates that “plainly apply to at least some foreign conduct.” 579 U.S. at 338.

Congress's incorporation of the Fed. R. Civ. P., which was already recognized to authorize extraterritorial discovery, is a clear indication of § 1782's extraterritorial intent. In 1964, Congress amended § 1782 to state that discovery and document production shall occur “in accordance with the Federal Rules of Civil Procedure.” 28 U.S.C. § 1782(a). Six years prior, the court applied Rule 34's “possession, custody, or control” standard to compel production of

banking records held in Switzerland. *Société Internationale Pour Participations Industrielles et Commerciales, S.A. v. Rogers*, 357 U.S. 197, 200 (1958). When Congress incorporates existing law by reference, it can be presumed Congress “had knowledge of the interpretation given to the incorporated law... as it affects the new statute.” *Lorillard v. Pons*, 434 U.S. 575, 581 (1978).

Just as RICO's incorporation of extraterritorial predicates provided a “clear, affirmative indication” of extraterritorial reach, *Nabisco*, 579 U.S. at 338, so too does § 1782's incorporation of the already-extraterritorial Fed. R. Civ. P. The Second Circuit affirmed this in *In re del Valle Ruiz*, reasoning “Congress's incorporation of the Federal Rules of Civil Procedure, which had by then been interpreted to allow for extraterritorial discovery... is sufficient to overcome the presumption.” 939 F.3d at 532 n.14.

The incorporation of the Fed. R. Civ. P indicates that no document location bar exists. Section 1782 authorizes courts to issue a subpoena duces tecum. *See Intel Corp.*, 542 U.S. at 249. Fed. R. Civ. P. 45 governs subpoena duces tecum. And, “the only geographical limitation provided by Rule 45 concerns the location for the act of production—*not the location of the documents* or information to be produced (Rule 45(c) (2) (A)).” *Sergeeva v. Tripleton Int'l Ltd.*, 834 F.3d 1194, 1200 (11th Cir. 2016) (emphasis added). Similarly, in *Société Internationale*, the court interpreted the “possession, custody, or control” standard outlined in Fed. R. Civ. P. 26 and 34 (concerning discovery and document production) and found *no geographic restriction on where documents must be stored*. 357 U.S. at 205–06 (emphasis added). Unless the district court prescribes otherwise, the Fed. R. Civ. P controls document production under § 1782. Here, the district court did not, and thus the entirety of the Fed. R. Civ. P, including its extraterritorial reach, applies.

3. Legislative history evinces Congress’s consistent pattern of expanding the scope of § 1782 and confirms its intent for extraterritorial use.

For nearly 150 years, legislative history and amendments to § 1782 show Congress's consistent intent to expand the statute's reach. The Supreme Court in *Intel* reviewed § 1782's history in detail. When Congress first enacted the statute in 1855, it was limited to discovery obtained through letters rogatory issued by foreign courts. *Intel Corp.*, 542 U.S. at 247. In 1948, Congress substantially broadened the statute, eliminating the requirement that a foreign government be a party and made it applicable to “any civil action pending in any court in a foreign country.” *Id.* at 248. The next year, Congress replaced “civil action” with “judicial proceeding.” *Id.* In 1964, Congress replaced “in any judicial proceeding pending in any court in a foreign country” with “in a proceeding in a foreign or international tribunal,” opening the statute to non-traditional courts. *Id.* at 248–49. Congress also incorporated the Fed. R. Civ. P., which authorized extraterritorial discovery, clarifying the statute's extraterritorial reach. Finally, in 1996, Congress expanded the statute again, and the Supreme Court found that “nothing suggest[ed] that this amendment was an endeavor to rein in, rather than to confirm, by way of example, the broad range of discovery authorized in 1964.” *Id.* at 259.

Legislative reports indicate the 1964 amendments to § 1782 were intended to “clarif[y] and liberaliz[e] existing U.S. procedures for assisting foreign and international tribunals and litigants in obtaining oral and documentary evidence,” as part of a bill that amended several statutes to better assist international judicial cooperation. S. REP. NO. 88-1580, at 7 (1964), as reprinted in 1964 U.S.C.C.A.N. 3782, 3788.

In *Intel*, the Supreme Court recognized this pattern and refused to impose “categorical limitations” that Congress itself declined to enact. *See* 542 U.S. at 260–62. Similarly, this court should reject a per se rule based on document location, given Congress repeatedly declined to

impose one. Likewise, § 1782 does not contain an exhaustion requirement that requires CCC to seek the documents in Brazil first, and this court should not read one into existence. The Second Circuit already considered the issue and found “nothing in the text” of § 1782 supports “a quasi-exhaustion requirement.” *In re Malev Hungarian Airlines*, 964 F.2d 97, 100 (2d Cir. 1992).

The district court relied on a quote by Hans Smit, one of § 1782's principal drafters, to infer that legislative intent opposed extraterritorial application. J.A. 11. But Smit made this remark to disapprove of forum shopping, not the extraterritorial application of § 1782. The case Smit discussed involved two Spanish parties in a Spanish court, with one attempting to use § 1782 to obtain evidence located in Spain, circumventing Spanish discovery rules. In that same article, Smit notes, “[a] sharp distinction should be made between recourse to § 1782 to obtain evidence located in the United States for use in a proceeding abroad and recourse to § 1782 to obtain evidence located in a foreign country for use in that action.” Hans Smit, *American Assistance to Litigation in Foreign and International Tribunals: Section 1782 of Title 28 of the U.S.C. Revisited*, 25 Syracuse J. Int'l L. & Com. 1, 11 n.49 (1998).

CCC seeks American-generated documents from an American company for use in a British proceeding, mirroring the first scenario, which Smit deems permissible. The Second Circuit considered and rejected the district court's reading of Smit in *In re del Valle Ruiz*, holding that “given the plain meaning of the statute, these considerations are insufficient to win the day.” 939 F.3d at 533 n.16. *See also Bruesewitz v. Wyeth LLC*, 562 U.S. 223, 242 (2011) (characterizing post-enactment commentary as “not a legitimate tool of statutory interpretation”).

B. Even if the presumption is not rebutted, ordering Raiders America to produce these documents is a permissible domestic application of § 1782.

This Court does not need to resolve whether the presumption is rebutted to rule in favor of CCC. In *Abbas*, this Court began with Step 2 because the statute “contain[ed] difficult

questions about whether Congress intended the statute to apply extraterritorially." *Abbas*, slip op. at 21-22 (quoting *United States v. McLellan*, 959 F.3d 442, 468 (1st Cir. 2020)). *McLellan* itself did the same, skipping Step 1 entirely. 959 F.3d at 468. The same approach is warranted here as courts are split on § 1782's extraterritorial reach. *See In re del Valle Ruiz*, 939 F.3d at 532 n.15. This Court need not resolve the divide because under Step 2, this case involves a permissible domestic application.

1. Section 1782's "focus" is the district court's authority over persons within the United States, making this a domestic application even though some effects are felt abroad.

Under Step 2, courts must identify the statute's "focus" and ask whether related conduct occurred in the United States. *Abbas*, slip op. at 21 (citing *RJR Nabisco*, 579 U.S. at 337). A statute's focus is "'the object of its solicitude,' which can include the conduct it 'seeks to regulate' as well as the parties and interests it 'seeks to protect' or vindicate." *WesternGeco LLC v. ION Geophysical Corp.*, 585 U.S. 407, 413–14 (2018) (quoting *Morrison*, 561 U.S. at 267). To identify the focus, courts examine the statute's text and structure to determine the object of "congressional concern." *Morrison*, 561 U.S. at 266. Yet the focus is not necessarily "what the statute authorizes," *WesternGeco*, 585 U.S. at 418, but the underlying conduct, parties, or interests that prompted Congress to legislate. *See Morrison*, 561 U.S. at 266–67. If the conduct relevant to the focus occurred in the United States, the case involves a permissible domestic application "even if other conduct occurred abroad." *RJR Nabisco*, 579 U.S. at 337. Step 2 applies the presumption to claims involving both domestic and foreign activity, "separating the activity that matters from the activity that does not." *Abitron Austria GmbH v. Hetronic Int'l, Inc.*, 143 S. Ct. 2522, 2529 (2023).

Morrison instructs courts to identify the focus by asking who or what prompted Congress to legislate: the "parties or prospective parties" the statute was made to protect. 561 U.S. at 267.

Legislative history confirms Congress wrote § 1782 to empower district courts to assist "foreign and international tribunals and litigants." S. REP. NO. 88-1580, *supra*, at 7. The statute accomplishes this by giving district courts authority over persons found within their jurisdictions. While the court may order document production, that is simply the mechanism through which the court exercises this authority, not the statute's focus.

A textual analysis confirms this. Section 1782 opens: "The district court of the district in which a person resides or is found may order him to give his testimony or statement or to produce a document or other thing for use in a proceeding in a foreign or international tribunal." 28. U.S.C. § 1782(a). The grammatical subject is the district court. The object of the court's authority is the person who "resides or is found" in the district. Section 1782 (b) provides that persons within the United States "may voluntarily give" testimony or produce evidence without a court order. Both subsections focus on the relationship between the court and the person.

The district court never performed this analysis. It treated Raiders America's choice to store documents in Brazil as dispositive. In contrast, this Court in *Abbas* recently established new precedent: finding a wire transfer originating in Kenya but received in the defendant's Illinois bank account was a permissible domestic application of the wire fraud statute, because the conduct relevant to the statute's focus (the domestic use of the wires) occurred in the United States. Slip op. at 23.

Here, the conduct relevant to § 1782's focus is entirely domestic. The District Court of Massachusetts is exercising authority over Raiders America, a New Mexico LLC headquartered in California, through Marcus Brady, who works in Raiders' Cambridge office. The court's order would compel Brady to produce documents generated in the United States by American

employees. Every element relevant to § 1782's focus (the court, the person, the district) is domestic. The documents' foreign location is incidental to this domestic application.

2. A per se document-location bar defeats § 1782's purpose and produces results Congress enacted the statute to prevent.

The *Intel* Court rejected a similarly categorical restriction on § 1782. There, the respondent argued that § 1782 discovery should be limited to materials that would be discoverable in the foreign jurisdiction. The Court refused, holding that such a requirement “would serve only to thwart § 1782(a)'s objective to assist foreign tribunals in obtaining relevant information that the tribunals may find useful but, for reasons having no bearing on international comity, they cannot obtain under their own laws.” 542 U.S. at 262. Courts “are not free to read extra-statutory barriers to discovery into section 1782.” *In re Application of Gianoli Aldunate*, 3 F.3d 54, 59 (2d Cir. 1993). Nothing in § 1782's text justifies a per se location bar, and this court should not impose one.

The consequences of such a restriction are apparent here. All parties agree the *Intel* discretionary factors favor discovery. J.A. 23 (Joint Stipulation ¶ 2). Yet under the district court's ruling, CCC's only path to these documents is to petition the courts of Brazil—a country with no connection to CCC's dispute or the British Museum. And CCC must seek documents from Raiders Worldwide, a different entity from the discovery target, all parties agree is appropriate. J.A. 23 (Joint Stipulation ¶ 4). Congress enacted § 1782 so that litigants could obtain evidence from persons within U.S. jurisdiction without precisely this kind of multi-jurisdictional runaround. *See Intel Corp.*, 542 U.S. at 249. The district court's ruling rejects that purpose: an American company, based in Massachusetts and generating documents in Cambridge, can place those documents beyond § 1782's reach simply by storing them across the border.

“Interpretations of a statute which would produce absurd results are to be avoided if

alternative interpretations consistent with the legislative purpose are available.” *Griffin v. Oceanic Contractors, Inc.*, 458 U.S. 564, 575 (1982). An interpretation that defeats § 1782's objectives, rewards a corporation for shipping documents overseas, and forces a litigant into a foreign court system to obtain evidence an American court is fully empowered to order produced is not a permissible reading of the statute.

CONCLUSION

The court should grant CCC's petition for discovery under 28 U.S.C. § 1782.

Respectfully submitted,

March 30, 2026

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